

Based on the above, Defendant Harris' demurrer to the fraud cause of action is **sustained**.

Leave to Amend

The burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading." (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

Defendant requests that the demurrer be sustained without leave to amend. Plaintiffs not only do not provide any explanation as to how they can amend the SAC to properly allege the fraud cause of action, they do not even request leave to amend. Despite this, "it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 688 citation omitted.)

The SAC does not show on its face that it is incapable of amendment. As this is the first challenge to pleading, leave to amend is granted. Plaintiffs are reminded of their burden going forward.

Conclusion

Defendant's Demurrer is **overruled** as to negligence cause of action and **sustained** as to the fraud cause of action. Plaintiffs are **granted leave to amend** as to the fraud cause of action. Plaintiffs shall file their amended complaint within 14 calendar days of entry of this Order.

4. 9:00 AM CASE NUMBER: C23-00932
CASE NAME: HONESTII LUMSEY VS. ANTIOCH EDEN RIVERTOWN, L.P.
***HEARING ON MINOR'S COMPROMISE RE: HONESTII AMARA LUMSEY**
FILED BY: LUMSEY, HONESTII AMARA

TENTATIVE RULING:

Hearing required.

The Court is concerned that the fee percentage of 40% is not consistent with the criteria for a reasonable attorney's fee under CRC 7.955(b). Counsel are given the option of either accepting a reduction of the fee to \$30,000 (30% of the recovery) or continuing the matter and submitting a supplemental brief addressing compliance with the CRC factors. (The Court is aware that the proposed 40% is a reduction from 50% called for by the retainer agreement.) Counsel may appear to address the issue.

The attorney is required to appear (by zoom is acceptable). Appearance of the minor is waived for good cause. Appearance of the Guardian ad Litem is required (by zoom is acceptable), in order to assure that she understands that (1) if subsequent events show that the injuries have not fully healed, she cannot reopen the case; and (2) that the funds are not available for the ordinary support of the minor, but must be maintained to be paid to the minor when she turns 18, unless the court orders otherwise.